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CROSS-DEFENDANT'S DEMURRER TO FIRST AMENDED CROSS-COMPLAINT

Demurrer filed on May 21, 2026.

MOVING PARTY: Moti Amar (Cross-Defendant)

RESPONDING PARTY: Sarah Tall (Cross-Complainant)

NOTICE: OK

RELIEF REQUESTED: Cross-Defendant demurs to the first, second, and third causes of action in the First Amended Cross-Complaint.

RULING: The demurrer is sustained in part and overruled in part.

BACKGROUND

On March 18, 2026, Sarah Tall (Cross-Complainant) filed the operative First Amended Cross-Complaint against Moti Amar (Cross-Defendant), asserting causes of action for private nuisance, civil harassment, and intentional infliction of emotional distress. On May 21, 2026, Cross-Defendant filed this demurrer. On July 23, 2026, Cross-Complainant filed an opposition. On July 29, 2026, Cross-Defendant filed a reply.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

DISCUSSION

First Cause of Action for Private Nuisance

To establish an action for private nuisance, (1) "the plaintiff must prove an interference with his use and enjoyment of his property"; (2) "the invasion of the plaintiff's interest in the use and enjoyment of the land must be substantial, that is, that it causes the plaintiff to suffer substantial actual damage"; (3) "the interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land." (Mendez v. Rancho Valencia Resort Partners, LLC (2016) 3 Cal.App.5th 248, 262-263, citations, italics, brackets, and quotation marks omitted.)

Here, Cross-Complainant alleges that she owns property adjoining Cross-Defendant's property. (FACC ¶¶ 1-4.) As to interference with use and enjoyment, she alleges that Cross-Defendant's repairs caused stagnant water to remain in his nearly empty pool, that the water became a breeding ground for mosquitoes and other biting insects, and that she cannot use her backyard without being attacked by those insects. (FACC ¶¶ 19-21.) As to substantial actual damage, the alleged inability to use the backyard and repeated exposure to biting insects constitute an actual impairment of Cross-Complainant's use and enjoyment of her property. (FACC ¶¶ 21-22, 24.) As to unreasonableness, the alleged nature and duration of the condition, together with Cross-Defendant's alleged refusal to remediate it, support an inference that the interference is unreasonable. (FACC ¶¶ 20-23.) Even disregarding the pleading's characterization of the repairs as "negligent" and the refusal to remediate as "unreasonable," the pleaded facts sufficiently allege a substantial and unreasonable interference with Cross-Complainant's use and enjoyment of her property.

A statute of limitations defense may be resolved on demurrer only when the defect clearly and affirmatively appears on the face of the pleading. (Committee for Green Foothills v. Santa Clara County Bd. of Supervisors (2010) 48 Cal.4th 32, 42.) Cross-Complainant alleges that the condition caused harm within the last three years. (FACC ¶¶ 20-24.) A limitations bar therefore does not clearly and affirmatively appear on the face of the First Amended Cross-Complaint.

The demurrer to the first cause of action is overruled.

Second Cause of Action for Civil Harassment

Code of Civil Procedure section 527.6 allows "a person who has suffered harassment" to seek "a temporary restraining order and an order after hearing prohibiting harassment." (Code Civ. Proc., § 527.6, subd. (a)(1).) Section 527.6 provides a specialized procedure for obtaining limited injunctive relief to prevent threatened future harm. (Olson v. Doe (2022) 12 Cal.5th 669, 673.) The petition and response forms developed by the Judicial Council are mandatory in proceedings brought under section 527.6. (Id. at p. 678; Code Civ. Proc., § 527.6, subd. (x)(1).)

Here, the second cause of action seeks injunctive relief for alleged civil harassment under section 527.6 but was asserted in the First Amended Cross-Complaint rather than through the required statutory petition and mandatory Judicial Council forms. (FACC ¶¶ 25-38.) The demurrer to the second cause of action is sustained with leave to amend so Cross-Complainant may consider this procedural issue and determine whether any claim based on the alleged harassment may properly be asserted in the cross-complaint. This ruling is without prejudice to Cross-Complainant filing a petition under section 527.6.

Third Cause of Action for Intentional Infliction of Emotional Distress

“The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

The court may determine in the first instance whether the defendant’s conduct may reasonably be regarded as sufficiently extreme and outrageous to permit recovery. (Trerice v. Blue Cross of California (1989) 209 Cal.App.3d 878, 883.) However, “whether conduct is ‘outrageous’ is usually a question of fact.” (So v. Shin (2013) 212 Cal.App.4th 652, 672.)

Here, as to outrageous conduct, Cross-Complainant alleges a continuing course of daily complaints, surreptitious surveillance, verbal and written attacks, false reports to law enforcement and city officials, threatening demands, threatening letters and emails, accusations, and threats directed at her during the two years preceding the filing of the cross-complaint. (FACC ¶¶ 31, 34, 40.) The alleged conduct is not limited to isolated complaints or insults. Considered together and in the context of the alleged purpose of harassing Cross-Complainant and inducing her to leave her property, the allegations permit a reasonable inference that the course of conduct could be regarded as extreme and outrageous.

As to intent or reckless disregard, Cross-Complainant alleges that Cross-Defendant engaged in the conduct to continuously harass her and induce her to leave her property. (FACC ¶ 40.) As to severe emotional distress, she alleges severe and substantial emotional distress that has necessitated and will continue to necessitate medical treatment. (FACC ¶ 42.) Unlike a bare allegation of unspecified emotional harm, the allegation of past and continuing medical treatment provides some factual support for the alleged severity of the distress. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) As to causation, Cross-Complainant alleges that Cross-Defendant’s course of conduct caused that distress and resulting harm. (FACC ¶¶ 42-43.) Taken as true, the allegations sufficiently plead intentional infliction of emotional distress.

Cross-Defendant argues that the alleged reports to law enforcement and city officials are privileged. Even assuming the privilege applies to those reports, the cause of action also rests on the alleged surveillance, verbal and written attacks, threatening demands, threatening communications, accusations, and threats. For the reasons discussed above, the remaining allegations are sufficient at the pleading stage. A demurrer does not lie to a portion of a cause of action. (PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1682.)

The alleged course of conduct includes conduct during the two years immediately preceding the filing of the cross-complaint. (FACC ¶¶ 40-42.) A limitations bar therefore does not clearly and affirmatively appear on the face of the pleading.

The demurrer to the third cause of action is overruled.

CONCLUSION

The demurrer to the first cause of action for private nuisance is overruled.

The demurrer to the second cause of action for civil harassment is sustained with leave to amend. This ruling is without prejudice to Cross-Complainant filing a petition under Code of Civil Procedure section 527.6.

The demurrer to the third cause of action for intentional infliction of emotional distress is overruled.

Cross-Complainant shall file and serve any amended cross-complaint within 20 days.